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6 IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
7 IN AND FOR THE COUNTY OF THURSTON

8 CRISTINA FARIAS QUIROZ,

9 Plaintiff,

10 vs.

11 CRISTIAN XXX, LEO XXX, and All Other
12 Occupants of 606 South 3rd Street, Yakima,
Washington, 98901

13 Defendant(s).

No. 25-2-02360-39

MOTION TO DISMISS FOR
DISCRIMINATION BASED ON
DISABILITY

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15 I. MOTION

16 Defendants Cristian XXX and Leo XXX, by and through Melissa Derry, of Central
17 Washington Legal Aid, objects to issuance of any writ of Restitution and moves this court for an:
18 Order of Dismissal pursuant to *Douglas v. Kriegsfeld Corp*, 884 A.2d 1109, 2005 D.C. App.
19 LEXIS 515, 2005, *Giebler v. M&B Assocs.*, 343 F.3d 1143, 2003 U.S. App. LEXIS 18996
20 (2003), and RCW 49.60.222. If the court does not believe a dismissal is warranted, defendants
21 respectfully request that this case be set for a jury trial, on the question of whether the landlord
22 improperly discriminated against tenants, and a stay of any Writ of Restitution that may be
23 authorized by this court pending trial.
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II. RELEVANT FACTS

On September 1, 2025, this attorney notified opposing counsel that one of the tenants in this case had both knees replaced and would likely fall under a temporary disability. Landlord refused to offer any kind of an accommodation or even engage in a conversation designed to determine whether a reasonable accommodation could be made to allow the tenants to stay in the residence. The only “offer” was a quick move out with some rent forgiven. The tenants’ inability to work is directly tied to his disabilities.

III. ISSUE

1. Whether a dismissal is warranted because of unlawful discrimination under the Washington Law Against Discrimination (WLAD) and/or Fair Housing Amendments Act (FHAA) after notice of disability is provided to landlord and landlord refuses to engage in required discussions with tenant thereby discriminating against tenant?

Short answer: Yes.

IV. EVIDENCE RELIED UPON

The evidence is based upon the court file, exhibits attached to this document, and testimony expected to be presented at the court hearing.

V. AUTHORITY AND ARGUMENT

Until a landlord makes a good faith, reasonable effort at accommodation, upon request, after learning of a tenant's mental impairment, the landlord's continued pursuit of a pending action for possession is a discriminatory act under the Fair Housing Act. *Douglas v. Kriegsfeld Corp.*, 884

1 A.2d 1109, 1126 (2005). Both federal and state law prohibit landlords from discriminating
2 against disabled tenants, including the failure to reasonably accommodate a tenant's disability. 42
3 U.S.C. § 3604(f)(2), (3)(B); RCW 49.60.222(1)(f), (2)(b), *Kiemle & Hagood Co. v. Daniels*, 26
4 Wn. App. 2d 199, 221 (2023).

5 A tenant's claim that a landlord has failed to accommodate their disability may constitute a
6 defense to eviction. *Id.* quoting *Josephinium Assocs. v. Kahli*, 111 Wn. App. 617, 626, 45 P.3d
7 627 (2002). The defense can be asserted so long as the failure to accommodate is germane to the
8 landlord's claim to the right to possess the premises. *Id.* A tenant raising failure to accommodate
9 as an affirmative defense must show five elements:

10 (1) they have a “disability” as that term is statutorily defined,

11 (2) their landlord “knew or reasonably should have known” of the disability,

12 (3) the requested accommodation “‘may be necessary’ to afford [the tenant] an equal
13 opportunity to use and enjoy the dwelling,” and

14 (4) the landlord denied the request....

15 (5) requested accommodation is reasonable.

16 *Kiemle & Hagood Co. v. Daniels*, 26 Wn. App. 2d 199, 221-222 (2023) citing *Giebeler v.*
17 *M&B Assocs.*, 343 F.3d 1143, 1147 (9th Cir. 2003) (quoting *United States v. Cal. Mobile Home*
18 *Park Mgmt. Co.*, 107 F.3d 1374, 1380 (9th Cir. 1997)).

19 In this case, the landlord has been unwilling since the beginning of this case, and the previous
20 case to allow defendants to pursue rental assistance, or any alternative to stay in the residence.¹

21 Testimony expected to be elicited during the hearing would include evidence that both the
22 tenants fall under a disability, either by physical or mental impairment.² Defendants attorney

23 _____
¹ See Exhibit A & B

24 ² See Motion previously filed on 9/2/25 in this case as to more details of defendant’s disability.

1 notified the attorney for the landlord of the disability, and did not receive any indication the
2 landlord would be willing to negotiate or engage in any form of dialog on the matter.

3 The landlord must attempt accommodation at least by opening a dialogue with the tenant on
4 the requested accommodation and thus explore accommodation in good faith before saying "no."
5 *Douglas v. Kriegsfeld Corp.*, 2005 D.C. App. LEXIS 515, 33-32 (2005). Actions based on a
6 landlord's perception of mental impairment, not only on the reality of it, can give rise to
7 actionable discrimination; and discrimination can be found even in a landlord's failure to offer a
8 tenant assistance, not merely in affirmative acts of rejection. *Douglas v. Kriegsfeld Corp.*, 2005
9 D.C. App. LEXIS 515, 18 (2005).

10 In Douglas, the court reasoned there was evidence presented as to landlords' failure to
11 accommodate or even to engage in the process of determining whether an accommodation would
12 work to allow the tenant to reside in the tenancy. Thus, a factual question was raised that
13 required a jury to determine whether there was, "evidence sufficient for a jury to find that
14 principal responsibility for any delay in pinning down the details of the tenant's request, and in
15 working out plans for cleaning the apartment, lay with the landlord." *Douglas v. Kriegsfeld*
16 *Corp.*, 2005 D.C. App. LEXIS 515, 22-23 (2005).

17 Under the Fair Housing Act, a landlord "is only obligated to provide a reasonable
18 accommodation" to a tenant "if a request for the accommodation has been made." *Douglas v.*
19 *Kriegsfeld Corp.*, 2005 D.C. App. LEXIS 515, 24 (2005). A tenant who requests a "reasonable
20 accommodation," moreover, should "make clear[]" to the landlord that "she is requesting an
21 exception, change, or adjustment to a rule, policy, practice, or service because of her disability."
22 Id. And "she should explain what type of accommodation she is requesting." Id. On the other
23 hand, the Fair Housing Act "does not require that a request be made in a particular manner." Id.
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1 Even more importantly, the tenant's failure to make clear in her initial request "what type of
2 accommodation she is requesting" is not fatal. *Id.* According to applicable case law, including an
3 administrative adjudication by HUD itself, once the tenant requests a "reasonable
4 accommodation" (or, without using those exact words, requests an accommodation for a
5 disability) the landlord is obliged under the Fair Housing Act to respond promptly. *Id.* The Act -
6 as properly interpreted - requires the landlord to "open a dialogue" with the tenant, eliciting more
7 information as needed, to determine what specifics the tenant has in mind and whether such
8 accommodation would, in fact, be reasonable under the circumstances. *Douglas v. Kriegsfeld*
9 *Corp.*, 2005 D.C. App. LEXIS 515, 26 (2005). Any delay from the landlord's failure to respond
10 promptly to the tenant's request may become the landlord's responsibility. *Id.* at 27.

11 Although neither statutory language in the Fair Housing Act nor its implementing
12 regulations expressly requires an "interactive process" for resolving requests for reasonable
13 accommodation[], several courts have indicated that the Act's statutory scheme inherently
14 imposes such a requirement. *Jankowski Lee & Assocs. v. Cisneros*, 91 F.3d 891, 895 (7th Cir.
15 1996) (if landlord is "skeptical of" tenant's alleged disability or landlord's ability to provide
16 accommodation, "it is incumbent upon landlord to request documentation or open a dialogue");
17 *Jacobs v. Concord Vill. Condo. X Ass'n, Inc.*, No. 04-60017-CIV, 2004 U.S. Dist. LEXIS 4876,
18 at 5 (D. Fla. Feb. 17, 2004) (same); *Armant v. Chat-Ro Co., L.L.C.*, No. 00-1402, 2000 U.S. Dist.
19 LEXIS 11386, at 6 (E.D. La. Aug. 1, 2000) (quoting *Jankowski Lee & Assocs.* and further
20 holding that once apprised of possible handicap, landlord has *duty* to inquire or investigate
21 further) [emphasis mine]; *Auburn Woods I Homeowners Assn. v. Fair Employment & Housing*
22 *Com.*, (2004) 121 Cal. App. 4th 1578, 1598[, 18 Cal.Rptr. 3d 669, 683] (quoting *Jankowski Lee*
23 *& Assocs.* and further holding that obligation to "open a dialogue" with party requesting
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1 reasonable accommodation is part of interactive process in which each party seeks and shares
2 information); *Cornwell & Taylor LLP v. Moore*, 2000 Minn. App. LEXIS 1317, at 11 (Minn.
3 App. Div. Dec. 22, 2000) (quoting *Jankowski Lee & Assocs.*); *Douglas v. Kriegsfeld Corp.*, 2005
4 D.C. App. LEXIS 515, 26 (2005)³.

5 In *Jankowski*, discusse[d] the duty of a landlord to inquire once apprised of a tenant's
6 non-obvious handicap. In *Jankowski*, the tenant seeking an accommodation had noted that he
7 was disabled with multiple sclerosis (MS) on his rental application, and later requested a
8 handicapped parking space. The management denied the tenant's request because it did not
9 appear to the landlord that the tenant had difficulty walking to and from his car. Ultimately, the
10 circuit court *affirmed a summary judgment* in favor of the tenant/plaintiff, finding that after being
11 informed of the tenant's diagnosis, the building manager failed to adequately investigate whether
12 the tenant was actually disabled. *Armant v. Chat-Ro Co., L.L.C.*, 2000 U.S. Dist. LEXIS 11386,
13 5-6 (2000) quoting *Jankowski Lee & Associates v. Cisneros*, 91 F.3d 891 (7th Cir. 1996)
14 [emphasis mine]. Furthermore, Grubb itself noted that a "relevant factor in determining whether
15 forfeiture [of a lease] should be ordered is the presence or absence of 'fair dealing' by the
16 landlord." *Douglas v. Kriegsfeld Corp.*, 2005 D.C. App. LEXIS 515, 29-30 [2004].

17 Douglas and *Jankowski*, stand for the proposition that the landlord has an affirmative
18 duty to inquire, to open a dialog, to endeavor to gather information, to determine whether a
19 reasonable accommodation request would allow the tenant an opportunity to enjoy the premises.
20 No attempts at dialog on the requested accommodation was provided by the landlord in this case.
21 The only "offers" by the landlord in this case, as up to the time of submission is to move out
22 quickly and have some of the previous rent forgiven. This is not a reasonable accommodation
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24 ³ This is cited in footnote 22 in the *Douglas* case.

1 that would allow tenants to enjoy the property. Tenants have been pushed into the position of
2 begging for more time to move out because of the landlords unwillingness to engage in any
3 dialog related to the tenants staying the property.

4 The landlord has an affirmative duty to engage in negotiations once notice of a disability is
5 provided, or landlord should have, or acquires knowledge of tenant's disability. This has not
6 occurred; landlord is discriminating against tenant based on the tenant's disability, as tenants
7 disability is directly related to their inability to pay rent. Testimony is expected to be presented at
8 the hearing detailing how Mr. XXX was the primary income earner prior to his medical ailments,
9 the successive heart attacks, heart stints, knee replacements, and other medical ailments prevent
10 him from working. He is dependent on his partner, who has mental health issues of his own in
11 the form of anxiety and depression, which hamper his ability to clean, care for his ailing partner,
12 and work sufficiently to support his partner.

13 14 **VI. RELIEF REQUESTED**

15 The defendant tenants respectfully request this case be dismissed and an order of limited
16 dissemination be entered. If the court does not believe dismissal is warranted under these
17 circumstances, tenants request this case be set for trial on the merits and a stay of any Writ that
18 may be issued by this court until a jury can determine the facts. If this case is set for trial, then
19 defendants further request a bond as required to protect the tenant from unlawful eviction.

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21 Respectfully submitted,

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23 By: _____
24 Melissa Derry, WSBA #57037

Attorney for Respondent

EXHIBIT A
Email dated June 19 2025

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EXHIBIT B
Email dated September 1 2025